



Notification Waiver Determination

MA Financial (Redcape Fund) – Seven hospitality venues in NSW

Acquisition	Redcape Hotel Group Pty Ltd and MAHF Custodian Pty Ltd as custodian for RGM TT PTY LTD (which is the trustee for each sub-trust that will hold the respective target venues) (together, the Acquirers) applied for a notification waiver in respect of their proposed acquisition of 100% of the freehold land interest, buildings, licenses, and other business assets of 7 hospitality venues in the Hunter region of New South Wales (NSW), as described in the transaction documents provided as part of the application (the Acquisition). The 7 hospitality venues comprise of: a. Gunyah Hotel, Belmont; b. Argenton Hotel, Argenton; c. Peden's Hotel, Cessnock; d. Sydney Junction Hotel, Hamilton; e. Hotel Elmore, Elmore Vale; f. Edgeworth Tavern, Edgeworth; and g. QT Newcastle, Newcastle (target venues).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	11 August 2026

Parties to the Acquisition	The Acquirers are part of MA Financial Group's Redcape Fund, which owns and operates community pubs and hotels. It currently has 37 pubs and hotels across NSW, Queensland, and Victoria. The target venues are owned by entities controlled by Iris Capital. With the exception of QT Newcastle, each target venue is a community pub and hotel venue that offers food, beverage, gaming, entertainment, and/or function and event services. QT Newcastle is a tourist focused accommodation hotel that also offers food, beverage, gaming, entertainment, and function and event services. Five of the target venues offer accommodation, and the remaining two (Hotel Elmore and Edgeworth Tavern) each operate an associated 'Bottler' retail liquor store. Two target venues also have an adjoining residential lot.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap between MA Financial Group (or its connected entities) and the target venues in the supply of on-premises liquor, dining, and gaming services, or the retail supply of takeaway packaged liquor, in the Hunter region. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**